

# An Act

ENROLLED HOUSE  
BILL NO. 4142

By: Manger of the House

and

Hines of the Senate

An Act relating to crimes and punishments; amending 21 O.S. 2021, Sections 1767.1, as amended by Section 459, Chapter 486, O.S.L. 2025, and 1767.3 (21 O.S. Supp. 2025, Section 1767.1), which relate to the unlawful use of bombs or explosive devices and related definitions; modifying elements of certain crimes; providing construing provision; updating certain defined terms; and providing an effective date.

SUBJECT: Crimes and punishments

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1767.1, as amended by Section 459, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1767.1), is amended to read as follows:

Section 1767.1. A. Any person who shall willfully or maliciously commit any of the following acts shall be deemed guilty of a Class D1 felony offense:

1. Place or conspire to place in, upon, under, against or near to any building, car, truck, aircraft, motor or other vehicle, vessel, railroad, railway car, or locomotive or structure, any explosive or incendiary device ~~with unlawful intent to destroy, throw down, or injure~~ capable of causing destruction, in whole or in part, ~~such of said property, or conspire, aid, counsel or procure the destruction of any building, public or private, or any car, truck, aircraft, motor or other vehicle, vessel, railroad, railway car, or locomotive or structure; or~~

2. Place or conspire to place in, upon, under, against or near to any building, car, truck, aircraft, motor or other vehicle, vessel, railroad, railway car, or locomotive or structure, any explosive or incendiary device ~~with intent to destroy, throw down, or injure~~ capable of causing destruction or injury, in whole or in part, under circumstances that, if ~~such intent it~~ were accomplished to function, human life or safety would be endangered thereby; or

3. ~~By the explosion~~ Use of any explosive or ~~the igniting of any incendiary device~~ to destroy, throw down, or injure any property of another person, or cause injury to another person, in whole or in part; or

4. Manufacture, sell, transport, or possess or conspire to manufacture, sell, transport, or possess any explosive, the component parts ~~of an explosive~~ or ingredients of any homemade explosive, an incendiary device, or simulated bomb ~~with knowledge or intent that it or they will be used~~ when such item or materials are designed, modified, assembled, or possessed in a manner that demonstrates preparation for illegal use, or possessed in a combination and under circumstances indicating intent or readiness to unlawfully kill, injure or intimidate any person, or unlawfully damage any real or personal property; or

5. Place or conspire to place in, upon, under, against or near to any building, car, truck, aircraft, motor or other vehicle, vessel, railroad, railway car, or locomotive or structure, any foul, poisonous, offensive or injurious substance or compound, explosive, incendiary device, or simulated bomb ~~with intent~~ to wrongfully injure, molest or coerce another person or to injure or damage the property of another person; or

6. Injure, damage or attempt to damage by an explosive or incendiary ~~device~~ any person, persons, or property, whether real or personal, in whole or in part; or

7. Make any threat or convey information known to be false, concerning an attempt or alleged attempt to kill, injure or intimidate any person or unlawfully damage any real or personal property by means of an explosive, incendiary ~~device~~, or simulated bomb; or

8. Manufacture, sell, deliver, mail or send an explosive, incendiary ~~device~~, or simulated bomb to another person; or

9. While committing or attempting to commit any felony, possess, display, or threaten to use any explosive, incendiary ~~device~~, or simulated bomb.

B. Nothing contained herein shall be construed to apply to, or repeal any laws pertaining to, the acts of mischief of juveniles involving no injurious firecrackers or devices commonly called "stink bombs".

C. Nothing contained herein shall be construed to prohibit the lawful manufacture, sale, transport, possession, or use of explosives, explosive materials, incendiaries, simulated bombs, their components, or ingredients for a lawful purpose and in compliance with applicable state and federal law.

SECTION 2. AMENDATORY 21 O.S. 2021, Section 1767.3, is amended to read as follows:

Section 1767.3. As used in Section 1767.1 of this title:

1. "Explosive" or "explosives" means any chemical compound, mixture or device, the primary or common purpose of which is to function by explosion or which, although not its primary or common purpose, has been modified, manipulated, altered, enhanced, or otherwise caused to function by explosion (that is, with substantial instantaneous release of gas, heat, debris, or concussive pressure or force, or any combination of such actions), unless such compound, mixture or device is otherwise specifically classified by the United States Department of Transportation. The term "explosive" or "explosives" shall include, but not be limited to, gunpowder, dynamite, any bomb, all materials as defined in paragraphs 1 and 2 of Section 121.1 of Title 63 of the Oklahoma Statutes, and all material which is classified as explosives by the United States Department of Transportation;

2. "Person" means any individual or individuals, firm, copartnership, corporation, company, association, joint stock association, and includes any trustee, receiver, assignee or personal representative thereof;

3. ~~"Incendiary device"~~ "Incendiary" means any chemical compound, ~~mixture or device~~ accelerant, material, or combination thereof, the primary purpose or effect of which is to ignite, initiate combustion, or promote the spread of fire, whether through direct ignition, chemical reaction, or by enhancing the

combustibility of other materials. This includes, but is not limited to, devices designed to ignite on impact ~~or as a result of chemical reaction such as a "Molotov cocktail", including "Molotov cocktails" or "firebomb" which is ignited on impact, causing a mechanical reaction of the container's breaking and permitting the inflammable matter to spread or splatter and is ignited from the burning wick or hypergolic reaction of chemicals "firebombs" and materials deployed without a container, such as poured accelerants intended to cause fire or destruction;~~

4. "Component parts" means separate parts which if assembled would form an explosive ~~device~~. Component parts of an "incendiary device" shall consist of an inflammable material, a breakable container and a source of ignition; and

5. "Simulated bomb" means any device or object that by its design, construction, content, or characteristics appears to be, or to contain, an incendiary device, explosive, or explosives, as defined in this section, but is, in fact, an inoperative facsimile or imitation of such a device or explosive.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 5th day of March, 2026.

\_\_\_\_\_  
Presiding Officer of the House  
of Representatives

Passed the Senate the 5th day of May, 2026.

\_\_\_\_\_  
Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this \_\_\_\_\_  
day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.  
By: \_\_\_\_\_

Approved by the Governor of the State of Oklahoma this \_\_\_\_\_  
day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this \_\_\_\_\_  
day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.  
By: \_\_\_\_\_